6.4 Federal Form of Government

The classification of governments into unitary and federal is based on the nature of relations between the national government and the regional governments A federal government is one in which powers are divided between the national government and the regional governments by the Constitution itself and both operate in their respective jurisdictions independently. US, Switzerland, Australia, Canada, Russia, Brazil, Argentina have the federal form of government. In a federal model, the national government is known as the Federal government or the Central government or the Union government and the regional government is known as the state government or the provincial government.

Federal Features Of Indian Constitution

a. Dual Government

The Indian Constitution establishes a dual polity consisting the Union at the Centre and the states at the periphery. Each is endowed with sovereign powers to be exercised in the field assigned to them respectively by the Constitution.

a. Written Constitution

The articles of the Constitution are written and cannot be easily changed without due parliamentary approval.

a. Division of Powers

The Constitution divided the powers between the Centre and the states in terms of the Union List, State List and Concurrent List in the Seventh Schedule.

a. Supremacy of the Constitution

The Constitution is the supreme law of the land. The laws are enacted by the Centre and the states must confirm to its provisions.

b. Rigid Constitution

Amendment of the Constitution is by a procedure of 2/3rd majority in each of the house and laws cannot be easily changed by any ruling party.

c. Independent Judiciary

The Judiciary is separated from the Executive and Legislature. The Judiciary given its national and state level jurisdictions, exercises Original, Appellate and Judicial Review functions. It functions independently of the Executive and Legislature.

d. Bicameralism

It provides for a two-house legislature that has an Upper chamber and Lower chamber. With the Lower house having powers of enacting financial legislation.

Merits Of Federal Form Government

a. Reconciliation of local autonomy with national unity.

b. Division power between centre and states leads to administrative efficiency.

c. It gives rise to big states.

d. Distribution powers checks the despotism of central government.

e. More suitable for bigger countries.

f. It is good for economic and cultural progress.

g. De-Merits Of Federal Form Government.

h. Federal government is weaker when compared to the unitary government.

i. Federal government is more expensive.

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